

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No.:

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DEANDRE BRYANT,

Date Purchased:

Plaintiff,

Plaintiff designates
KINGS County as the
place of trial.

-against-

The basis of venue is
the residence of the
Plaintiff, Deandre Bryant,
2100 Srauss St.
Brooklyn, NY 11212

THE CITY OF NEW YORK, POLICE OFFICER
LUIS RODRIGUEZ, Shield # 27492, POLICE OFFICERS
JOHN/JANE DOES 1-5.

SUMMONS

Defendants.

Date Filed: _____

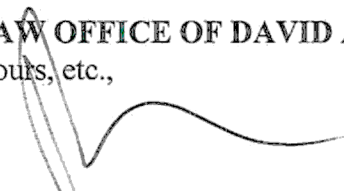
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To the above-named Defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney within twenty (20) days after service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: Brooklyn, New York
June 2, 2020

LAW OFFICE OF DAVID A. ZELMAN
Yours, etc.,



DAVID A. ZELMAN, ESQ.
709 Eastern Parkway
Brooklyn, New York 11213
(718) 604-3072

Defendants' addresses:

THE CITY OF NEW YORK, 100 CHURCH STREET, New York, NY 10007

POLICE OFFICER LUIS RODRIGUEZ, Shield #27492, POLICE OFFICERS JOHN/JANE
DOE(S) #S 1-5 all residing at: One Police Plaza, New York, New York 10038

SUPREME COURT OF THE CITY OF NEW YORK
COUNTY OF KINGS

-----X
DEANDRE BRYANT,

Plaintiff,

VERIFIED COMPLAINT

Index No.:

-against-

THE CITY OF NEW YORK, POLICE OFFICER
LUIS RODRIGUEZ, Shield # 27492, POLICE OFFICERS
JOHN/JANE DOES 1-5.

Defendants.

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Plaintiff DEANDRE BRYANT, for his complaint, by his attorney DAVID A. ZELMAN, ESQ.,
and upon information and belief respectfully allege as follows:

I. PRELIMINARY STATEMENT

1. This is a civil rights action in which Plaintiff DEANDRE BRYANT (hereinafter "BRYANT"), seeks damages to redress the deprivation, under color of state law, of rights secured to him under the Fourth, Fifth, Sixth, and Fourteenth Amendments of the United States Constitution. It is alleged that Defendants falsely arrested BRYANT, maliciously prosecuted him, and denied him his right to a fair trial among other claims. As a result, Plaintiff suffered damages.

II. PARTIES

2. Plaintiff BRYANT at all times relevant hereto resided in Brooklyn, NY.
3. THE CITY OF NEW YORK, hereinafter "CITY" or "THE CITY" is and was a municipal corporation existing by the law of the City and State of New York.

4. Defendant POLICE OFFICER LUID RODRIGUEZ, Shield #27492 (hereinafter “RODRIGUEZ”) was a NYPD police officer, and at all times relevant hereto, acted in that capacity as agent, servant, and/or employee of Defendant CITY and within the scope of their employment. Defendant RODRIGUEZ is sued in his official and individual capacity. .
5. Defendants POLICE OFFICER JOHN/JANE DOE(S) (hereinafter “DOE(S)”) were NYPD police officers, and at all relevant times hereto, acted in that capacity as agents, servants, and/or employees of Defendant CITY and within the scope of their employment. DOE(S) are sued in their official and individual capacity.
6. At all relevant times hereto, Defendants were acting under the color of state and local law. Defendants are sued in their individual and official capacities.

III. FACTS

7. On or about February 14, 2019, BRYANT was operating his vehicle on West 145th Street, New York, New York.
8. Defendant officers activated lights and sirens and pulled over BYRANT.
9. Defendant officers informed BYANT that his headlights were off.
10. BRYANT was asked for his license and registration however was unable to produce either.
11. BRYANT informed the officers that his license to drive was suspended.
12. Defendant officers, including defendant RODRIGUEZ, handcuffed BRYANT forcefully, despite the fact that BYRANT had a cast on his arm and had recently undergone surgery in January of 2019. BRYANT informed the officers that he had a hard cast on. BRYANT requested to be front cuffed but the Defendant Officers including defendant

RODRIGUEZ insisted on rear cuffing BRYANT. BRYANT complained about the handcuffing and informed the officers it was causing him pain. In order to get the handcuffs to fit on plaintiff, the defendant officers, including defendant Rodriguez had to put excessive pressure on plaintiff's casted arm. When Plaintiff arrived at Central Booking he requested to go to a hospital due to the forceful cuffing and pain it caused him. However, Plaintiff did not go to a hospital at that time and instead was arraigned on the suspended license charge. Following arraignment, while the Court ordered that Plaintiff be released on his own recognizance, Plaintiff was not released from custody but was rearrested. Plaintiff was then brought to Bronx County and held in custody for additional time. Claimant was then brought to Lincoln Hospital in a police vehicle, however, plaintiff was only examined and not treated. Plaintiff was released from custody from Lincoln Hospital. The basis of the rearrest was never fully explained to plaintiff.

13. BRYANT was imprisoned, suffered damage to his reputation, economic losses, and emotional and psychological distress.
14. As to the suspended license charge, plaintiff paid a fine.
15. That heretofore and on the 10th day of May, 2019, Plaintiff's Notice of Claim and Intention to sue was duly served upon and filed with the CITY; said Notice was filed within ninety (90) days after the cause of action herein accrued and set forth the name and post office address of Plaintiff, the nature of the claim, the time when, the place where, the manner in which the claim arose and the items of damage and injuries sustained.

16. That at least thirty (30) days have elapsed since the demand or claim upon which these actions are predicated was presented to CITY for adjustment or payment thereof and that it has neglected and/or refused to make adjustment or payment thereof.

IV. FIRST CAUSE OF ACTION/ILLEGAL INVESTIGATORY DETENTION

Pursuant to § 1983 (FALSE ARREST/ILLEGAL INVESTIGATORY DETENTION)

17. Paragraphs 1 through 15 of this complaint are hereby realleged and incorporated by reference herein.
18. That Defendants had neither valid evidence for the rearrest of BRYANT nor legal cause or excuse to seize and detain him following his release from custody by the Kings County Court for the initial charge of driving with a suspended license.
19. Moreover, defendants did not have a legitimate, non discriminatory basis to stop BRYANT initially while he was driving and the initial stop of plaintiff violated his rights to be free from an illegal investigatory detention.
20. That in detaining BRYANT without a fair and reliable determination of probable cause, Defendant CITY abused its power and authority as a policymaker of the NYPD under the color of State and/or local law. It is alleged that CITY, via their agents, servants and employees routinely charged persons with crimes they did not commit. BRYANT was but one of those persons.
21. Upon information and belief, it was the policy and/or custom of Defendant CITY to inadequately supervise and train its officers, staff, agents and employees, thereby failing to adequately discourage further constitutional violations on the part of their officers, staff, agents and employees.

22. As a result of the above described policies and customs, the officers, staff, agents and employees of Defendant CITY believed that their actions would not be properly monitored by supervisory officers and that misconduct would not be investigated or sanctioned, but would be tolerated. In addition, the City of New York had and has a policy, custom, and/or practice of detaining persons for an excessive period of time prior to arraignment.
23. The above described policies and customs demonstrated a deliberate indifference on the part of the policymakers of the CITY to the constitutional rights of arrestees and were the cause of the violations of BRYANT's rights alleged herein.
24. By reason of Defendants acts and omissions, Defendant CITY, acting under color of state law and within the scope of its authority, in gross and wanton disregard of BRYANT's rights, subjected BRYANT to an unlawful detention, in violation of the Fourth and Fourteenth Amendments of the United States Constitution and the laws of the State of New York.
25. By reason of the foregoing, BRYANT suffered physical injuries, mental injuries, deprivation of liberty and privacy, terror, humiliation, damage to reputation and other psychological injuries. All of said injuries may be permanent.

V. SECOND CAUSE OF ACTION

Pursuant to State Law (FALSE ARREST/ILLEGAL INVESTIGATORY DETENTION)

26. Paragraphs 1 through 24 are hereby realleged and incorporated by reference herein.
27. That the initial vehicle stop, rearrest, and detention and imprisonment following the rearrest of BRYANT was unlawful in that Defendants had no probable cause to detain, rearrest and/or imprison him following his release from custody by the Kings County Court.

28. That Defendants intended to confine BRYANT.
29. That BRYANT was conscious of the confinement and did not consent to it.
30. That the confinement was not otherwise privileged.
31. By reason of Defendants acts and omissions, Defendants, acting in gross and wanton disregard of BRYANT's rights, deprived him of his liberty when they subjected him to an unlawful, illegal and excessive detention, in violation of State law.
32. That by reason of the foregoing, BRYANT suffered physical injuries, mental injuries, economic injury, deprivation of liberty and privacy, terror, humiliation, damage to reputation and other psychological injuries. All of said injuries may be permanent.

VI. THIRD CAUSE OF ACTION

Pursuant to §1983 (EXCESSIVE FORCE)

33. Paragraphs 1 through 31 are hereby realleged and incorporated by reference herein.
34. That the incident that resulted from the intentional application of physical force by Defendants constituted a seizure. That the use of excessive force in effectuating the seizure was unreasonable under the circumstances.
35. That Defendants had no legal cause or reason to use excessive force in effectuating BRYANT's arrest.
36. That Defendants violated BRYANT's Fourth and Fourteenth Amendment right to be free from unreasonable seizures when they used excessive force against him.
37. That at the time of the arrest or while in custody, BRYANT did not pose a threat to the safety of the arresting officers.
38. That BRYANT was not actively resisting arrest or attempting to evade arrest.
39. That defendant CITY, through its officers, agents, and employees, unlawfully subjected BRYANT to excessive force while effectuating his arrest.

40. That Defendants actions were grossly disproportionate to the need for action and were unreasonable under the circumstances.
41. That by reason of Defendants acts and omissions, acting under color of state law and within the scope of his authority, in gross and wanton disregard of BRYANT's rights, subjected BRYANT to excessive force while effectuating his arrest, in violation of his rights pursuant to the Fourth and Fourteenth Amendments of the United States Constitution.
42. That Defendants had the opportunity to intervene, and failed to do so, to prevent violations of BRYANT's civil rights, including but not limited to the right to be free from the application of excessive force.
43. That upon information and belief, in 2019, Defendants and CITY had a policy or routine practice of using excessive force when effectuating arrests.
44. That upon information and belief, it was the policy and/or custom of defendant CITY to inadequately train, supervise, discipline, and/or terminate their officers, staff, agents and employees, thereby failing to adequately discourage further constitutional violations on the part of their officers, staff, agents and employees.
45. That as a result of the above described policies and customs, the officers, staff, agents and employees of defendant CITY, believed that their actions would not be properly monitored by supervisory officers and that misconduct would not be investigated or sanctioned, but would be tolerated.
46. That the above described policies and customs demonstrate a deliberate indifference on the part of the policymakers of defendant CITY to the constitutional rights of arrestees and were the cause of the violations of BRYANT's rights alleged herein.

47. By reason of the foregoing, BRYANT suffered physical injuries, mental injuries, emotional injuries, economic injury, trauma, humiliation, terror, damage to reputation, and other psychological injuries. All of said injuries may be permanent.

VII. FOURTH CAUSE OF ACTION

Pursuant to State Law (EXCESSIVE FORCE)

48. Paragraphs 1 through 46 are hereby realleged and incorporated by reference herein.
49. That the incident that resulted from the intentional application of physical force by Defendants constituted a seizure.
50. That the use of excessive force in effectuating the seizure was unreasonable under the circumstances.
51. That Defendants had no legal cause or reason to use excessive force in effectuating BRYANT's arrest or after BRYANT was arrested and in custody.
52. That at the time of the arrest, BRYANT did not pose a threat to the safety of the arresting officers.
53. That BRYANT was not actively resisting arrest or attempting to evade arrest.
54. That Defendants actions were grossly disproportionate to the need for action and were unreasonable under the circumstances.
55. That by reason of Defendants acts and omissions, Defendants, acting under color of state law and within the scope of their authority, in gross and wanton disregard of BRYANT's rights, subjected BRYANT to excessive force while effectuating his arrest, in violation of the laws of the State of New York.

56. That Defendants had the opportunity to intervene, and failed to do so, to prevent violations of BRYANT's civil rights, including but not limited to the right to be free from the application of excessive force.
57. By reason of the foregoing, BRYANT suffered physical injuries, mental injuries, emotional injuries, economic injury, trauma, humiliation, terror, damage to reputation, and other psychological injuries. All of said injuries may be permanent.

X. FIFTH CAUSE OF ACTION

Pursuant to State Law (Assault and Battery)

58. Paragraphs 1 through 56 are hereby realleged and incorporated by reference herein.
59. That Defendants intended to cause harmful bodily contact to BRYANT.
60. That defendant Defendants, in a hostile manner, voluntarily caused BRYANT'S injuries.
61. That Defendants' contact with BRYANT constituted a battery in violation of the laws of the State of New York.
62. That by reason of the foregoing, BRYANT suffered physical injuries, mental injuries, emotional injuries, economic injury, trauma, humiliation, terror, damage to reputation, and other psychological injuries. All of said injuries may be permanent.

XII. SIXTH CAUSE OF ACTION

Pursuant to § 1983 (EXCESSIVE PRE-ARRAIGNMENT DETENTION)

63. Paragraphs 1 through 61 are hereby realleged and incorporated by reference herein.
64. That Defendants had no legal cause nor excuse to detain BRYANT for a prolonged period prior to arraignment.

65. That Defendants detained BRYANT excessively prior to arraignment in violation of BRYANT's civil rights.
66. That Defendants should have expeditiously investigated this matter and released BRYANT.
67. By reason of Defendant's acts and omissions, Defendants, acting under color of state law and within the scope of its authority, in gross and wanton disregard of BRYANT's rights, deprived BRYANT of his liberty when it subjected him to an unlawful, illegal and excessive detention, in violation of his due process rights pursuant to the Fourth and Fourteenth Amendments of the United States Constitution and the laws of the State of New York.
68. That in so acting, Defendant CITY, abused its power and authority as policymaker of the New York City Police Department under the color of State and/or local law.
69. That upon information and belief, in 2019, Defendant CITY had a policy or routine practice of detaining and imprisoning individuals for excessive periods prior to arraignment.
70. That upon information and belief, it was the policy and/or custom of Defendant CITY to inadequately train and supervise their officers, staff, agents and employees, thereby failing to adequately discourage further constitutional violations on the part of their officers, staff, agents and employees.
71. That as a result of the above described policies and customs, the officers, staff, agents and employees of Defendant CITY believed that their actions would not be properly monitored by supervisory officers and that misconduct would not be investigated or sanctioned, but would be tolerated.

72. That the above described policies and customs demonstrate a deliberate indifference on the part of the policymakers of Defendant NYPD to the constitutional rights of arrestees and were the cause of the violations of BRYANT's rights alleged herein.
73. That Defendant, through its officers, agents and employees, unlawfully incarcerated BRYANT for an excessive period of time prior to arraignment.
74. By reason of the foregoing, BRYANT suffered mental injuries, economic injury, deprivation of property, liberty and privacy, terror, humiliation, damage to reputation and other psychological injuries. All of said injuries may be permanent.

XIII. SEVENTH CAUSE OF ACTION

Pursuant to State Law (PRE-ARRAIGNMENT DELAY)

75. Paragraphs 1 through 73 are hereby realleged and incorporated by reference herein.
76. Defendants negligently and/or intentionally failed to arraign plaintiff promptly following his arrest as required by New York State and Federal laws, rules, regulations and statutes.
77. Said failure to promptly arraign plaintiff caused his arrest to be void ab initio.
78. As a result of the above constitutionally impermissible conduct, plaintiff was caused to suffer personal injuries, violation of civil rights, economic damages, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to his reputation and standing within his community.

XIV. EIGHTH CAUSE OF ACTION

Pursuant to State Law (RESPONDEAT SUPERIOR)

79. Paragraphs 1 through 77 are hereby realleged and incorporated by reference herein.
80. That Defendants were acting in furtherance of the duties owed to their employer, defendant CITY.

- 81. That at all times Defendants were acting within the scope of their employment.
- 82. That Defendant CITY was able to exercise control over Defendants activities.
- 83. That Defendant CITY is liable for Defendants actions under the doctrine of respondeat superior. By reason of the foregoing, BRYANT suffered physical injuries, mental injuries, emotional injuries, economic injury, trauma, humiliation, terror, damage to reputation, and other psychological injuries. All of said injuries may be permanent.

V. NINTH CAUSE OF ACTION

Pursuant to §1983 (FAILURE TO INTERVENE)

- 84. Paragraphs 1 through 82 are hereby realleged and incorporated by reference herein.
- 85. That Defendants failed to intervene when Defendants knew or should have known that Plaintiff's constitutional rights were being violated.
- 86. That Defendants had a realistic opportunity to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence.
- 87. That a reasonable person in the Defendants' position would know that Plaintiff's constitutional rights were being violated.
- 88. That by reason of Defendants' acts and omissions, Defendants, acting under the color of state law and within the scope of their authority, in gross and wanton disregard of Plaintiff's rights, deprived Plaintiff of his liberty when they failed to intervene to protect him from Defendants' violation of Plaintiff's civil rights pursuant to the Fourteenth Amendment of the United States Constitution.
- 89. That upon information and belief, Defendants had a policy and /or custom of failing to intervene to protect citizens from constitutional violations by police officers. Thus, as a result of the above described policies and customs, Plaintiff was not protected from

Defendants' unconstitutional actions. Plaintiff specifically alleges causes of action pursuant to *Monell v. Dep't of Soc. Servs.*, 436 U.S. 658.

90. That by reason of the foregoing, Plaintiff suffered incarceration psychological injuries, traumatic stress, mental anguish, economic damages including attorney's fees, damage to reputation, shame, humiliation, and indignity. All of said injuries may be permanent.

INJURY AND DAMAGES

As a result of the acts and conduct complained of herein, Plaintiff have suffered and will continue to suffer emotional pain, suffering, permanent disability, inconvenience, injury to their reputations, loss of enjoyment of life, loss of liberty and other non-pecuniary losses. Plaintiff have further experienced severe emotional and physical distress and loss of love, services, consortium, affection, society and companionship.

WHEREFORE, Plaintiff respectfully request that judgment be entered:

1. Awarding Plaintiff compensatory damages in a full and fair sum to be determined by a jury;
2. Awarding Plaintiff punitive damages in an amount to be determined by a jury;
3. Awarding Plaintiff interest from February 14, 2019;
4. Awarding Plaintiff reasonable attorney's fees pursuant to 42 USC § 1988; and
5. Granting such other and further relief as to this Court deems proper.

DATED: Brooklyn, New York
June 2, 2020

LAW OFFICE OF DAVID A. ZELMAN

DAVID A. ZELMAN, ESQ.
709 Eastern Parkway

Brooklyn, New York 11213
(718) 604-3072

ATTORNEY VERIFICATION

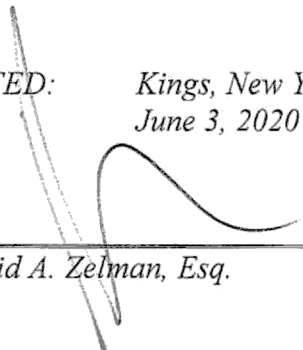
David A. Zelman, Esq., an attorney at law, duly admitted to practice in the Courts of the State of New York, affirms under the penalties of perjury that:

He is the attorney for the plaintiff(s) in the above entitled action. That he has read the foregoing COMPLAINT and knows the contents thereof, and upon information and belief, deponent believes the matters alleged therein to be true.

The reason this Verification is made by deponent and not by the plaintiff(s) is that the plaintiff(s) herein reside(s) in a county other than the one in which the plaintiff's attorneys maintain their office.

The source of deponent's information and the grounds of his belief are communication, papers, reports and investigation contained in the file.

DATED: Kings, New York
 June 3, 2020



David A. Zelman, Esq.